

Before the
FEDERAL MARITIME COMMISSION

Docket No. 25-04

CHINA UNITED LINES, LTD

v.

AMAZON.COM SERVICES, LLC,

AMAZON LOGISTICS, INC. AND

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

JOINT MOTION FOR THIRD REVISED SCHEDULING ORDER

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant China United Lines, Ltd ("Complainant" or "China United"), and Respondents Amazon.com Services, LLC ("Amazon Services"), Amazon Logistics, Inc. ("Amazon Logistics"), and Beijing Century Joyo Courier Service Co., Ltd ("Beijing Century") (collectively "Respondents"), by and through their undersigned counsel, hereby submit this Joint Motion for Third Revised Scheduling Order ("Motion"), respectfully requesting a modest extension of the date in Your Honor's Second Revised Scheduling Order by 21 days for completion of the fact witness depositions specified herein that could not be scheduled within the existing fact

discovery period,¹ and a corresponding extension of the other deadlines,² for the reasons stated herein. The Parties believe such an extension is reasonable and will further the efficient administration of the case. The parties do not intend to schedule any additional depositions during the period, and none have been noticed.

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Good cause exists for the extension requested herein.

Pursuant to the Second Revised Scheduling Order, the Parties have been working together to accomplish their discovery obligations and complete fact witness discovery by the current deadline of January 23, 2026. The Parties have met and conferred by email and letter extensively (including over the holidays) regarding the witnesses who would be made available for deposition. The Parties have also met and conferred by videoconference to resolve disputes regarding corporate deposition topics and to agree upon a comprehensive schedule for fact witness depositions. As a result of these discussions, the Parties have agreed to depose a significant number of witnesses in January and the beginning of February: 13 individual witnesses, and two corporate representatives who will testify pursuant to both Commission Rule 143(b)(6) and Federal Rule of Civil Procedure 30(b)(6) for the parallel action in the Southern District of New York. Coordinating

¹ Some of the proposed deadlines are moved by more than 21 days to ensure no new date falls on a weekend.

² Counsel for Complainant further requests an extension of the initial expert report deadline by 45 days (allowing them 30 days to prepare their reports, instead of the currently provided 7 days), to provide its experts sufficient time to complete their reports following the close of extensive fact witness discovery, as detailed herein.

schedules for international witnesses, along with the calendars of counsel, has been a complicated task. The Parties anticipate requiring additional time beyond the current deadline of January 23, 2026 to take these depositions.

Further complicating matters is the location of two of Complainant's witnesses in China (where depositions for foreign proceedings are prohibited) and one in Denmark. These witnesses intend to travel to the offices of Complainant's counsel in California for their depositions, but were not available to do so during the January dates Respondents originally noticed. These witnesses have provided (and Respondents' counsel has agreed to) alternative deposition dates. The Parties' deposition schedule, pending approval by the Presiding Officer, is as follows:

Date	Noticed By	Witness
January 12, 2026	Respondents	Corporate Depositions of Complainant and individual deposition of Yew Ping Teo
January 14, 2026	Complainant	Connor Klosky
January 15, 2026	Complainant	Becky Hasty Moore
January 16, 2026	Complainant	Adam Baker ³
January 20, 2026	Complainant	David Cardadeiro
January 22, 2026	Complainant	Jie Liao
January 23, 2026	Complainant	John Anfinson
January 27, 2026	Complainant	Jesse Wu and Jessica Chromy ⁴
January 28, 2026	Complainant	Corporate Depositions of Respondents and individual deposition of Annie Straneva ⁵
February 2, 2026	Respondents	Lars Christensen
February 3, 2026	Respondents	Raymond Chen
February 9, 2026	Respondents	Shunan Liu

³ Mr. Baker's deposition is being scheduled for before the proposed deadline of February 13, 2026 to complete fact depositions in this case. Respondents have advised that he is available January 29, 2026.

⁴ Ms. Chromy's deposition is being scheduled for before the proposed deadline of February 13, 2026 to complete fact depositions in this case. Respondents will advise on her availability.

⁵ Ms. Straneva's deposition is being scheduled for before the proposed deadline of February 13, 2026 to complete fact depositions in this case. Respondents will advise on her availability.

The significant number of depositions in this proceeding and the need to accommodate the schedules of witnesses and counsel preclude completing fact witness discovery absent a brief extension of the current Scheduling Order. The Parties believe a 21-day extension of the current deadline to complete fact witness depositions is sufficient. Counsel for Complainant further requests an extension of the initial expert report deadline by 45 days, to provide its experts 30 days (increased from the current seven days) to complete their reports following the close of fact witness discovery. Such an extension mirrors the Scheduling Order in other proceedings before the Presiding Officer, for example, *20230930-DK-BUTTERFLY-1, Inc. v. BAL Container Line Co., Ltd.* (Docket No. 25-01), where the Fourth Revised Scheduling Order provides 36 days between the close of fact discovery and initial expert report exchange.⁶ Counsel for Complainant believes such a request is particularly appropriate here, due to the wealth of anticipated testimony, and the time needed to review and finalize expert reports thereafter. Respondent's counsel agrees on the basis of the agreed-upon extension to the deadline for expert rebuttal reports.

The Parties do not believe granting the requested relief will impose an undue burden on any Party or any unnecessary delay in this proceeding. Pursuant to 46 C.F.R. Section 502.71, the Parties have met and conferred regarding this Motion and agree that the requested extension of the scheduling order is desirable and reasonable given the circumstances. The Parties jointly request the following amended schedule:

Event	Current Deadline	Requested Deadline
Last Day for Fact Discovery and Depositions.	January 23, 2026	February 13, 2026
Last Day for Services of Requests for Admission.	January 29, 2026	February 19, 2026

⁶ Counsel for Complainant here is also counsel for Respondent, BAL Container Line Co., Ltd., in Docket No. 25-01.

Event	Current Deadline	Requested Deadline
Expert Reports Due. Joint Status Report with Proposed Schedule Due.	January 30, 2026	March 16, 2026
Expert Rebuttal Reports Due.	February 16, 2026	April 13, 2026
Close of All Discovery.	March 2, 2026	April 27, 2026

WHEREFORE, the Parties respectfully request that their Joint Motion for Third Amended Scheduling Order be granted.

[SIGNATURE PAGE FOLLOWS]

Dated January 15, 2026

Respectfully submitted,

K&L GATES LLP

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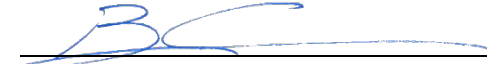
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 15th day of January 2026, a true and correct copy of the foregoing **Joint Motion to Align Scheduling Orders** was served via electronic mail on:

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